

25VECV05698 25VECV05698

County: los-angeles

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Case Number: 25VECV05698 Hearing Date: September 1, 2026 Dept: NWI

25VECV05698 YAZDANPANA v. KHAMIS, et al.

September 1, 2026, at 8:30 a.m.

Van Nuys Courthouse East, Dept. I

Motion to Set Aside Default

I.

Background

This is a defamation action arising out of purported false statements made by Defendant Bassam Al Khamis ("Defendant") about Plaintiff Payman Yazdanpanah ("Plaintiff"), which were allegedly published online and social media. On October 6, 2025, Plaintiff filed the operative Complaint against Defendant and DOES 1 through 20, alleging causes of action for: (1) Defamation – Libel and Slander; (2) Invasion of Privacy; (3) Harassment; (4) Intentional Infliction of Emotional Distress; (5) Negligent Infliction of Emotional Distress; and (6) Fraud/Misrepresentation.

On July 22, 2026, default was entered against Defendant. On August 3, 2026, Defendant filed the instant Motion to Set Aside Default. On August 25, 2026, Plaintiff filed an Opposition. To date, no reply has been filed.

II. Discussion

When service of a summons has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against him or her in the action, he or she may serve and file a notice of motion to set aside the default or default judgment and for leave to defend the action. The notice of motion shall be served and filed within a reasonable time, but in no event exceeding the earlier of: (i) two years after entry of a default judgment against him or her; or (ii) 180 days after service on him or her of a written notice that the default or default judgment has been entered.” (Code Civ. Proc., § 473.5, subd. (a).)

“A notice of motion to set aside a default or default judgment and for leave to defend the action shall designate as the time for making the motion a date prescribed by subdivision (b) of Section 1005, and it shall be accompanied by an affidavit showing under oath that the party’s lack of actual notice in time to defend the action was not caused by his or her avoidance of service or inexcusable neglect. The party shall serve and file with the notice a copy of the answer, motion, or other pleading proposed to be filed in the action.” (Code Civ. Proc., § 473.5, subd. (b).)

“Upon a finding by the court that the motion was made within the period permitted by subdivision (a) and that his or her lack of actual notice in time to defend the action was not caused by his or her avoidance of service or inexcusable neglect, it may set aside the default or default judgment on whatever terms as may be just and allow the party to defend the action.” (Code Civ. Proc., § 473.5, subd. (c).) “ ‘[A]ctual notice’ in section 473.5 ‘means genuine knowledge of the party litigant....’ [Citation.]” (Ellard v. Conway (2001) 94 Cal.App.4th 540, 547.) “ ‘[A]ctual knowledge’ has been strictly construed, with the aim of implementing the policy of liberally granting relief so that cases may be resolved on their merits. [Citation.]” (Id.)

As a preliminary matter, the Court notes that Defendant objects to Plaintiff’s opposition on the grounds that it is untimely. Specifically, Plaintiff’s opposition was due on August 19, 2026 but was not filed until August 25, 2026, which is the date the reply brief would have been due. However, the Court has discretion to consider untimely papers. (See Cal. Rules of Court, Rule 3.1300, subd. (d) [“If the court, in its discretion, refuses to consider a late filed paper, the minutes or order must so indicate.”].) Furthermore, Plaintiff requests that the Court exercises its

discretion to consider the opposition on the merits and contends the late filing was due to a calendaring error. (Opp. at 2:16-20.) Thus, the Court will exercise its discretion and rule on the merits below.

Here, Defendant moves for an order setting aside default entered against him on July 22, 2026 on the grounds that (1) service by publication did not result in actual notice to him in time to defend against this action; (2) Plaintiff's own counsel made a materially false statement regarding knowledge of Defendant's address; and Defendant has a meritorious defense against the causes of actions alleged in the Complaint. The Court addresses the second issue first.

Notably, Defendant takes issue with the Request for Entry of Default declaring that his address was "unknown," where Plaintiff's declaration in support of his Application for Service by Publication listed two specific addresses for Defendant. (Mot. at 3:11-15, 8:20-9:12.) However, the Application for Service by Publication indicated that no notice of acknowledgment had been returned after mailing the summons and complaint to these listed addresses and that attempts at personal service at these addresses had also proved unsuccessful. As a practical matter, a viable address for service of process was unknown at the time of default since the two addresses had not resulted in effected service.

Next, Plaintiff argues that default was properly entered against Defendant after Plaintiff obtained a court order authorizing service by publication and service by publication was completed on June 19, 2026. (Opp. at 2:5-12, 3:20-4:8.) Although Plaintiff did obtain a court order for service by publication and completed service via publication in the Los Angeles Times in accordance with said order, Defendant declares under penalty of perjury that he had no knowledge of the publication or the present lawsuit. (Khamis Decl., ¶7.) In fact, Defendant states that he learned of this instant case through a friend over the weekend of July 24, 2026. (Khamis Decl., ¶¶3-5.) The friend was searching Defendant's name for his LinkedIn page and a website called UniCourt came up, which referenced this pending case. (Ibid.) As cited above, "actual knowledge" is strictly construed, thus where Defendant avers that he did not have genuine knowledge of this lawsuit, relief under Code of Civil Procedure Section 473.5 is warranted.

Furthermore, once made aware of this instant case, Defendant acted with due diligence in seeking relief from

default. First, Defendant appeared for the Case Management Conference on July 28, 2026. Next, Defendant filed this instant motion on August 3, 2026. Defendant also included a proposed Answer as required under Code of Civil Procedure Section 473.5, subdivision (b). (Khamis Decl., ¶15, Ex. D.) In addition, Defendant appears to have a meritorious defense, which further supports setting aside the default and trying this case on the merits.

III.

Conclusion

Accordingly, Defendant Bassam Al Khamis' Motion to Set Aside Default is GRANTED. Defendant Bassam Al Khamis' proposed Answer to be served and filed separately within 3 court days of this Order.

Defendant Bassam Al Khamis to give notice.